

MOTION OF DEFENDANT AND CROSS-COMPLAINANT KERRI L. BEEKER FOR AN ORDER (1) DIRECTING SEPARATE TRIALS OF THE INGLENOOK TANK CLAIMS AND THE SOFIA PROPERTY CLAIMS AND (2) BIFURCATING THE PROPERTY CASE SO THAT THE EQUITABLE ISSUES ARE TRIED FIRST TO THE COURT

TENTATIVE RULING: The motion is DENIED.

Defendant and Cross-Complainant Kerri L. Beeker moves for two forms of relief. First, Ms. Beeker moves, pursuant to Code of Civil Procedure section 1048, subdivision (b), for an order “directing separate trials” of Plaintiffs’ claims relating to the alleged conversion and disposition of Inglenook fermentation tanks (see First Amended Complaint (FAC) at Causes of Action 1 through 6) from Plaintiffs’ claims relating to interests in and to the residential real property located at 1392 Silverado Trail South, St. Helena, California (see FAC at Causes of Action 7 and 8, and the claims asserted by Ms. Beeker through her First Amended Cross-Complaint (FACC)).¹ Ms. Beeker also moves, pursuant to Section 598, for an order bifurcating the latter of these trials such that her equitable cross-claims (see FAC at Causes of Action 7 through 12 and 14), tried to the Court sitting without a jury, be tried separately from her legal cross-claims and Plaintiffs’ trespass and ejectment claims, which are to be tried to a jury. (See Notice of Motion.)

Ms. Beeker proposes that: the equitable phase of the real property claims be tried first; the legal phase of the real property claims be tried second; and the claims related to the fermentation tanks be tried last. (See Support Memorandum at 14:1-18.)

Section 598 governs bifurcation of trial based on issue(s). “The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order . . . that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case . . .” (§ 598.) “The court, on its own motion, may make such an order at any time.” Section 1048 governs severance of trial based on causes of action. “The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.” (§ 1048, subd. (b).) The policy underlying the statute is promotion of judicial economy, fairness, and accuracy. (See *Foreman v. Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 888, at fn. 8.) The discretion granted to the Court under Code of Civil Procedure section 1048 “must necessarily be broad and will not be interfered with on appeal,

¹ All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.

except for an abuse thereof.” (*National Electric Supply Co. v. Mt. Diablo Unified School Dist.* (1960) 187 Cal.App.2d 418.)

Ms.Beeker fails to persuade the Court that her proposal for bifurcation, severance, and her proposed sequence would serve judicial economy, efficiency, or convenience.

Fundamentally, it appears to the Court, from the allegations of the FACC, that Ms.Beeker’s equitable claims regarding the real property are contingent on a finding that Plaintiffs enjoy legal title in and to the subject real property. (See, *e.g.*, FACC at ¶ 89 [“To the extent the Court finds that Cross-Defendants hold any interest in the Property or the funds associated with it, Cross-Defendants have received and controlled funds belonging to or for the benefit of Cross-Complainant . . .”].) The Court, therefore, finds no good cause for trying these equitable claims *before* the parties’ competing claims regarding legal title in and to the real property.

Moreover, Plaintiffs present evidence tending to show that a significant portion of the monies that Ms.Beeker alleges she contributed to the real property, and which found her equitable claims relating thereto, were wrongfully obtained by the Beekers from the sale of Plaintiffs’ fermentation tanks. (See, *e.g.*, Declaration of Jill K. Cohoe, Exh. 1 at p. 65, and Exh. 2 at p. 184; see also FACC at ¶¶ 29, 89(c), 94, 98(d), and 108.) Ms.Beeker’s requested equitable accounting (seventh cause of action) and other equitable claims therefore appear to directly invoke the issue of the Beekers’ right and title in and to the funds alleged to have been invested into the real property.

Based on the foregoing, the Court does not find good cause for trying Ms.Beeker’s equitable claims before either the legal claims relating to the real property or the legal claims relating to the fermentation tanks.

The motion is, therefore, DENIED. However, because the order of the presentation of evidence to a jury, and the trial of equitable matters to the Court remains to be set, the instant ruling is made without prejudice to Ms.Beeker’s right to renew, at the Trial Management Conference, her request to have evidence presented and issues tried in a particular sequence.

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Robert Breed v. Adventist Health St. Helena et al

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[1] DEFENDANT’S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF’S RESPONSES TO SPECIAL INTERROGATORIES, SET ONE, AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND/OR HIS COUNSEL

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff is ordered to, within 10 Court days of Notice of Entry of the instant order: (1) produce further responses to the Subject Discovery (defined below); and (2) remit monetary sanctions in the amount of \$1,915 to Defendant, care of Defendant’s counsel of record. Defendant is directed to file and serve a Notice of Entry of the instant order.